

24STCV25375 24STCV25375

County: los-angeles

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Case Number: 24STCV25375 Hearing Date: August 5, 2026 Dept: 509

Thousand Oaks Marketplace v. Thousand Oaks Vein Clinic, et al.

DEFENDANTS' MOTION FOR ATTORNEY'S FEES

MOVING PARTY: Defendants Thousand Oaks Vein Clinic P.C. and USA Vein Clinics, Inc.

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Thousand Oaks Marketplace, L.P (Plaintiff) asserts defendant Thousand Oaks Vein Clinic P.C. and USA Vein Clinics, Inc. (collectively, Defendants) breached a commercial lease agreement. Plaintiff's first amended complaint alleges causes of action for breach of lease and breach of guaranty.

On May 4, 2026, this action was dismissed after, among other things, Plaintiff failed to appear at trial. (See 5/4/26 Order Granting Motion to Dismiss.)

On July 6, 2026, Defendants filed this instant motion to recover their reasonable attorney's fees as prevailing party. Plaintiff did not file an opposition. [FN 1]

TENTATIVE RULING:

Defendants' Motion for Attorney's Fees is GRANTED, as requested, in the amount of \$54,705.00.

Defendants may file and serve a proposed amended judgment, consistent with this ruling.

Defendants are ordered to give notice.

DISCUSSION:

Motion for Attorney's Fees

I. Analysis

A. Entitlement to Fees

In California, "[a] party may not recover attorney fees unless expressly authorized by statute or contract." (Hom v. Petrou (2021) 67 Cal.App.5th 459, 464; See Code Civ. Proc., §§ 1021, 1033.5, subd. (a)(10).)

Civil Code, section 1717(a) provides:

In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

"California courts liberally construe the term 'on a contract' in Civil Code section 1717." (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 894.) "As long as the action 'involve[s]' a contract, it is 'on [the] contract'" within the meaning of section 1717." (Ibid.) "To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action. [Citations.] Any action that is based on a contract is an action on that contract regardless of the relief sought." (Yoon v. Cam IX Tr. (2021) 60 Cal.App.5th 388, 392.)

First, there is no question that the action here was "on a contract." The basis of the action were the parties' rights and obligations under the commercial lease agreement. Second, there is also no question that Defendants are the prevailing party here, given the involuntary dismissal of the action. Indeed, the Court has already ordered Defendants are entitled to fees. (See 5/4/26 Order Granting Oral Motion to Dismiss, ["Defendants are therefore entitled to recover allowable costs and reasonable attorneys' fees, in an amount to be determined upon duly noticed motion, memorandum of costs, application, or other procedure permitted by the Court."])

Accordingly, Defendants are entitled to an award of reasonable attorney fees and costs.

B. Reasonableness of Fees

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, the "total attorneys' fees incurred by Defendants in this matter and requested by this motion are \$54,705.00, based on 106.8 hours of attorney time at an hourly rate of \$525." (Raducu Decl. ¶17.) Although, upon a cursory review, the claimed fees appear to may be perhaps somewhat excessive, by failing to oppose, Plaintiff has not formally challenged the reasonableness of Defendants' attorney's fees. It was their burden to do so. (See, e.g., Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488 ["[I]t is the burden of the challenging party to point to the specific items challenged [within the moving party's verified billing invoice], with a sufficient argument and citations to evidence"].)

Accordingly, Defendants' Motion for Attorney's Fees is GRANTED, as requested, in the amount of \$54,705.00.

Defendants may file and serve a proposed amended judgment, consistent with this ruling.

Defendant is ordered to give notice.

IT IS SO ORDERED.

Dated: August 5, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Plaintiff was served by mail at Plaintiff's last known address (THOUSAND OAKS MARKETPLACE, L.P. c/o Adam Mintz Maxxam Enterprises 9440 Santa Monica Blvd. Suite 700 Beverly Hills, CA 90210) and to its registered agent for service of process (Attn: WARREN J. KESSLER 2000 AVENUE OF THE STARS STE 400-NORTH TOWER LOS ANGELES, CA 90067). (See 7/6/26 Proof of Service.)

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.